ORDINANCE NO. 459

AN ORDINANCE FIXING THE RATES TO BE CHARGED BY THE CITY OF RECTOR, ARKANSAS FOR WATER AND SEWER SERVICES; REPEALING ANY ORDINANCES IN CONFLICT THEREWITH; AND DECLARING AN EMERGENCY

WHEREAS, the City of Rector, Arkansas (the "City") has deemed it necessary to increase and adjust the water and sewer rates charged to customers served by the water and sewer system of the City of Rector;

NOW, THEREFORE, BE IT ORDAINED by the City Council of the City of Rector, Arkansas that:

Section 1. The City hereby establishes and fixes the following water rates for customers connected to meters in the following categories and locations, to-wit:

Residential Users Within City Limits:

First 2,000 gallons of water consumption (or portion thereof) per month—$9.00

For all monthly water consumption in excess of 2,000 gallons to and including 4,000 gallons—$2.00 for each 1,000 gallons or portion thereof.

For all monthly water consumption in excess of 4,000 gallons per month—$1.00 for each 1,000 gallons or portion thereof.

Residential Users Not Within City Limits:

First 2,000 gallons of water consumption (or portion thereof) per month—$ 15.00

For all monthly water consumption in excess of 2,000 gallons to and including 4,000 gallons—$ 3.50 for each 1,000 gallons or portion thereof.

For all monthly water consumption in excess of 4,000 gallons per month—$ 2.00 for each 1,000 gallons or portion thereof.

Commercial Users:

First 2,000 gallons of water consumption (or portion thereof) per month—$12.00.

For all monthly water consumption in excess of 2,000 gallons to and including 4,000 gallons—$2.25 for each 1,000 gallons or portion thereof.

For all monthly water consumption in excess of 4,000 gallons per month—$1.25 for each 1,000 gallons or portion thereof.

The foregoing water rates applicable to commercial users shall be the rates charged to two businesses at one location as well as to duplexes, apartments or two or more residences that are plumbed together and connected to only one meter.

Industrial Users and Schools:

First 2,000 gallons of water consumption (or portion thereof) per month—$12.00.

For all monthly water consumption in excess of 2,000 gallons to and including 4,000 gallons—$2.25 for each 1,000 gallons or portion thereof.

For all monthly water consumption in excess of 4,000 gallons to and including 10,000 gallons—$1.25 for each 1,000 gallons or portion thereof.

For all monthly water consumption in excess of 10,000 gallons—$0.75 for each 1,000 gallons or portion thereof.

Section 2. The City hereby establishes and fixes the following sewer rates for customers connected to meters in the following categories and locations, to-wit:

Residential Users Within City Limits:

First 2,000 gallons of water consumption (or portion thereof) per month—$6.75.

For all monthly water consumption in excess of 2,000 gallons to and including 4,000 gallons—$1.50 for each 1,000 gallons or portion thereof.

For all monthly water consumption in excess of 4,000 gallons per month—$0.75 for each 1,000 gallons or portion thereof.

Residential Users Not Within City Limits:

First 2,000 gallons of water consumption (or portion thereof) per month—$11.25

For all monthly water consumption in excess of 2,000 gallons to and including 4,000 gallons—$2.63 for each 1,000 gallons or portion thereof.

For all monthly water consumption in excess of 4,000 gallons per month—$1.50 for each 1,000 gallons or portion thereof.

Commercial Users:

First 2,000 gallons of water consumption (or portion thereof) per month—$9.00.

For all monthly water consumption in excess of 2,000 gallons to and including 4,000 gallons—$1.70 for each 1,000 gallons or portion thereof.

For all monthly water consumption in excess of 4,000 gallons per month—$0.95 for each 1,000 gallons or portion thereof.

The foregoing sewer rates applicable to commercial users shall be the rates charged to two businesses at one location as well as to duplexes, apartments or two or more residences that are plumbed together and connected to only one meter.

Industrial Users and Schools:

First 2,000 gallons of water consumption (or portion thereof) per month—$9.00.

For all monthly water consumption in excess of 2,000 gallons to and including 4,000 gallons—$1.70 for each 1,000 gallons or portion thereof.

For all monthly water consumption in excess of 4,000 gallons to and including 10,000 gallons—$0.95 for each 1,000 gallons or portion thereof.

For all monthly water consumption in excess of 10,000 gallons—$0.60 for each 1,000 gallons or portion thereof

All monthly sewer charges shall be based upon water bills.

Section 3. The City of Rector hereby establishes and fixes the following deposit charges, tapping fees and service charges applicable to water and sewer customers, to-wit:

Deposits

Residential Users	$ 50.00
Commercial Users	50.00
Industrial Users and Schools	50.00

Tapping Fees

3/4"	$150.00
1"	175.00
2"	250.00
Larger than 2"	Cost & Labor
Sewer	100.00

Service Charges

Disconnect	No Charge
Reconnect	$15.00

Section 4. The foregoing rates and charges shall become effective with all statements rendered for water and sewer services on and after May 1, 1999.

Section 5. Effective with bills rendered on and after January 1, 2000, the foregoing rates set forth in Sections 1 and 2 hereof shall be increased by a uniform rate of five percent (5%) of each stated amount.

Section 6. The provisions of this Ordinance are hereby declared to be separable and if any provision shall for any reason be held illegal or invalid, such holding shall not affect the validity of the remainder of this Ordinance.

Section 7. All ordinances and resolutions or parts thereof in conflict herewith are hereby repealed to the extent of such conflict.

Section 8. The City Council hereby determines that the City's present water and sewer rates do not generate sufficient revenue to enable the City to provide adequate public water and sewer services; that the provision of adequate water and sewer services is essential to the public welfare; and that the immediate passage of this ordinance is necessary to insure the provision of adequate public water and sewer services. Therefore, an emergency is hereby declared to exist, and this ordinance being necessary for the public health, safety and welfare, shall take effect and be in full force from and after its passage.

PASSED AND APPROVED this 1ST day of March, 1999.

APPROVED:

Ronald E. Ike
Mayor

ATTEST:

Kenneth R Barnes
City Recorder

[SEAL]